

THE UNIVERSAL HOUSE OF JUSTICE

1998-08-04

tional Spiritual Assemblies that the iranian ambassadors in their respective countries have now acknowledged that mr. rúŷu'lláh rawŷání, whose execution the iranian authorities originally denied, was indeed hanged in mashhad on 21 july 1998, as reported in our letter of 22 july to National Assemblies. The justification given for mr. rawŷání's brutal killing is that he was convicted of "criminal acts against national security."

As you are aware, the charge against mr. rawŷání and his long incarceration bore no relation to any question of national security; they arose out

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m e S a g e S f r o m T h e u n i v e r S a l h o u S e o f j u S T i c e

68of the accusation that he had converted a young muslim woman to the bahá'í faith. This young woman has made it clear that she is not a religious convert, but was raised as a bahá'í by her mother, who is herself a member of the faith. it is reasonable to conclude that the sudden introduction of an entirely fictitious charge related to national security represents a belated attempt by iranian authorities to fend off criticism from other governments, the media and human rights agencies, and to provide a plausible excuse for denying access to relevant information and documentation.

included in the statements from the iranian embassies is a report that mr. rawŷání had been arrested "for the same reasons" (i.e. violations of national security) twice before. . . . the facts of mr. rawŷání's earlier two arrests leave no doubt as to how completely baseless are the charges now brought against his memory:

1) mr. rawŷání was first arrested in 1984 as a former member of the local Spiritual Assembly of cháhishk, a village near mashhad. Although all bahá'í administrative bodies had been dissolved

in response to an order from iran's Attorney general in 1983, some forty friends, including mr. rawḡání, were arrested on the retroactive charge of having previously been members of Assemblies and bahá'í committees in the mashhad region. mr. rawḡání served more than a year in prison, over two years' internal exile in Najafábád, near íḡfahán, and was compelled to pay a fine of over one million rials before being permitted to return to his home.

2) mr. rawḡání's second arrest occurred approximately four years ago. with the dissolution of their administrative institutions, the believers found themselves having to make informal arrangements for the conduct of such purely religious activities as Nineteen day feasts, children's classes, prayer meetings and the like. it was mr. rawḡání's involvement in one such planning meeting that occasioned his second arrest. he, like all the others taken into custody on that occasion, was released after twenty-four hours. until recently, the iranian authorities have done relatively little to conceal the fact that bahá'ís are arrested, tried, sentenced and punished solely on the grounds of their religious beliefs and activities. The text of the judgment of the appeals court in the cases of mr. jamáli'd-dín pájípúr and mr. manḡúr mihrábí, forwarded to you with our letter of 21 may 1998, makes it clear that the official position of the government of iran and its

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1996–2000 • The Four Year Plan

69 courts is that the bahá'í religion is itself "an illegal organization" and that a person's membership in it makes him or her, by definition, liable to criminal charges. The proceedings against messrs. rawḡání, pájípúr and mihrábí make a mockery of the iranian government's assurances that, even though the bahá'í faith is not one of the religions recognized in the constitution of that country, iranian bahá'ís nevertheless retain the right to the observance of their religious beliefs. Activities such as "holding bahá'í feasts and meetings on 'bahá'í life'" are brazenly adduced as evidence of criminal behavior, including "espionage" for foreign governments.

it may be noted in passing that these shameless proceedings in iranian courts against bahá'í citizens of the country violate fundamental provisions of iran's constitution, which guarantees written charges, the selection of legal representation, public trial, and verdicts which are reasoned and documented "with reference to the articles and principles of the law in accordance with which they are delivered." . . .

in view of the efforts of iranian diplomatic spokesmen to suggest some significance in the fact that a bahá'í like mr. rawḡání has been arrested several times . . . most of the people arrested with mr. rawḡání on earlier occasions have likewise been arrested for a second or third time. The reason is related to the point made in our letter of 21 may 1998 that the province of khurásán (whose capital is mashhad) appears to have been selected as one of those regions in which a policy of particularly severe intimidation is being pursued. random arrests and imprisonment of believers who are seen as active in encouraging the religious life of the friends are apparently aimed at generating fear in the community as a whole. Alas, it now seems not unlikely that, as this intimidation had failed to produce any significant effect, the hanging of mr. rawḡání was decided upon as a demonstration of the seriousness of the authorities' determination to pursue the goals exposed in the secret document drawn up in 1991 by the Supreme revolutionary council.

The current campaign of disinformation being carried on by iranian embassies increases our concern about the safety of mr. 'A-á'u'lláh ḡamíd Na'írízádih, mr. Sírús dhabíẓí-m uqaddam and mr. hidáyat-káshifí Na-jafábádí, who were likewise sentenced to death in mashhad and are now awaiting their fate after a farcical "retrial."

with loving bahá'í greetings,

Department of the secretariat280.5

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message from The Universal House of Justice

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Bahá'í Sacred Literature in Simplified English

[signed: The Universal House of Justice]